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JUDITH JARVIS THOMSON

Preferential Hiring

Many people are inclined to think preferential hiring an obvious injustice.[1] I should have said "feel" rather than "think": it seems to me the matter has not been carefully thought out, and that what is in question, really, is a gut reaction.

I am going to deal with only a very limited range of preferential hirings: that is, I am concerned with cases in which several candidates present themselves for a job, in which the hiring officer finds, on examination, that all are equally qualified to hold that job, and he then straightway declares for the black, or for the woman, because he or she *is* a black or a woman. And I shall talk only of hiring decisions in the universities, partly because I am most familiar with them, partly because it is in the universities that the most vocal and articulate opposition to preferential hiring is now heard—not surprisingly, perhaps, since no one is more vocal and articulate than a university professor who feels deprived of his rights.

I suspect that some people may say, Oh well, in *that* kind of case it's all right, what we object to is preferring the less qualified to the better qualified. Or again, What we object to is refusing even to consider the qualifications of white males. I shall say nothing at all about

1. This essay is an expanded version of a talk given at the Conference on the Liberation of Female Persons, held at North Carolina State University at Raleigh, on March 26-28, 1973, under a grant from the S & H Foundation. I am indebted to James Thomson and the members of the Society for Ethical and Legal Philosophy for criticism of an earlier draft.

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these things. I think that the argument I shall give for saying that preferential hiring is not unjust in the cases I do concentrate on can also be appealed to to justify it outside that range of cases. But I won't draw any conclusions about cases outside it. Many people do have that gut reaction I mentioned against preferential hiring in *any* degree or form; and it seems to me worthwhile bringing out that there is good reason to think they are wrong to have it. Nothing I say will be in the slightest degree novel or original. It will, I hope, be enough to set the relevant issues out clearly.

I

But first, something should be said about qualifications.

I said I would consider only cases in which the several candidates who present themselves for the job are equally qualified to hold it; and there plainly are difficulties in the way of saying precisely how this is to be established, and even what is to be established. Strictly academic qualifications seem at a first glance to be relatively straightforward: the hiring officer must see if the candidates have done equally well in courses (both courses they took, and any they taught), and if they are recommended equally strongly by their teachers, and if the work they submit for consideration is equally good. There is no denying that even these things are less easy to establish than first appears: for example, you may have a suspicion that Professor Smith is given to exaggeration, and that his "great student" is in fact less strong than Professor Jones's "good student"—but do you *know* that this is so? But there is a more serious difficulty still: as blacks and women have been saying, strictly academic indicators may themselves be skewed by prejudice. My impression is that women, white and black, may possibly suffer more from this than black males. A black male who is discouraged or down-graded for being black is discouraged or down-graded out of dislike, repulsion, a desire to avoid contact; and I suspect that there are very few teachers nowadays who allow themselves to feel such things, or, if they do feel them, to act on them. A woman who is discouraged or down-graded for being a woman is not discouraged or down-graded out of dislike, but out of a conviction she is not serious, and I suspect that while there are very few teachers

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nowadays who allow themselves to feel that women generally are not serious, there are many who allow themselves to feel of the particular individual women students they confront that Ah, this one isn't serious, and in fact that one isn't either, nor is that other one—women generally are, of course, one thing, but these particular women, really they're just girls in search of husbands, are quite another. And I suspect that this will be far harder to root out. A teacher could not face himself in the mirror of a morning if he had down-graded anyone out of dislike; but a teacher can well face himself in the mirror if he down-grades someone out of a conviction that that person is not serious: after all, life is serious, and jobs and work, and who can take the unserious seriously? who pays attention to the dilettante? So the hiring officer must read very very carefully between the lines in the candidates' dossiers even to assess their strictly academic qualifications.

And then of course there are other qualifications besides the strictly academic ones. Is one of the candidates exceedingly disagreeable? A department is not merely a collection of individuals, but a working unit; and if anyone is going to disrupt that unit, and to make its work more difficult, then this counts against him—he may be as well qualified in strictly academic terms, but he is not as well qualified. Again, is one of the candidates incurably sloppy? Is he going to mess up his records, is he going to have to be nagged to get his grades in, and worse, is he going to lose students' papers? This too would count against him: keeping track of students' work, records, and grades, after all, is part of the job.

What seems to me to be questionable, however, is that a candidate's race or sex is itself a qualification. Many people who favor preferential hiring in the universities seem to think it is; in their view, if a group of candidates is equally well qualified in respect of those measures I have already indicated, then if one is of the right race (black) or of the right sex (female), then that being itself a qualification, it tips the balance, and that one is the best qualified. If so, then of course no issue of injustice, or indeed of any other impropriety, is raised if the hiring officer declares for that one of the candidates straightway.

Why does race or sex seem to many to be, itself, a qualification?

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There seem to be two claims in back of the view that it is. First, there is the claim that blacks learn better from a black, women from a woman. One hears this less often in respect of women; blacks, however, are often said to mistrust the whites who teach them, with the result that they simply do not learn as well, or progress as far, as they would if taught by blacks. Secondly, and this one hears in respect of women as well as blacks, what is wanted is *role models*. The proportion of black and women faculty members in the larger universities (particularly as one moves up the ladder of rank) is very much smaller than the proportion of blacks and women in the society at large—even, in the case of women, than the proportion of them amongst recipients of Ph.D. degrees from those very same universities. Black and women students suffer a constricting of ambition because of this. They need to see members of their race or sex who are accepted, successful, professionals. They need concrete evidence that those of their race or sex *can* become accepted, successful professionals.

And perhaps it is thought that it is precisely by virtue of having a role model right in the classroom that blacks do learn better from a black, women from a woman.

Now it is obviously essential for a university to staff its classrooms with people who can teach, and so from whom its students can learn, and indeed learn as much and as well as possible—teaching, after all, is, if not the whole of the game, then anyway a very large part of it. So if the first claim is true, then race and sex *do* seem to be qualifications. It obviously would not follow that a university should continue to regard them as qualifications indefinitely; I suppose, however, that it would follow that it should regard them as qualifications at least until the proportion of blacks and women on the faculty matches the proportion of blacks and women among the students.

But in the first place, allowing this kind of consideration to have a bearing on a hiring decision might make for trouble of a kind that blacks and women would not be at all happy with. For suppose it could be made out that white males learn better from white males? (I once, years ago, had a student who said he really felt uncomfortable in a class taught by a woman, it was interfering with his work, and did I mind if he switched to another section?) I suppose we would feel

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that this was due to prejudice, and that it was precisely to be discouraged, certainly not encouraged by establishing hiring ratios. I don't suppose it is true of white males generally that they learn better from white males; I am concerned only with the way in which we should take the fact, if it were a fact, that they did—and if it would be improper to take it to be reason to think being a white male is a qualification in a teacher, then how shall we take its analogue to be reason to think being black, or being a woman, is a qualification in a teacher?

And in the second place, I must confess that, speaking personally, I do not find the claim we are looking at borne out in experience; I do not think that as a student I learned any better, or any more, from the women who taught me than from the men, and I do not think that my own women students now learn any better or any more from me than they do from my male colleagues. Blacks, of course, may have, and may have had, very different experiences, and I don't presume to speak for them—or even for women generally. But my own experience being what it is, it seems to *me* that any defense of preferential hiring in the universities which takes this first claim as premise is so far not an entirely convincing one.

The second claim, however, does seem to me to be plainly true: black and women students do need role models, they do need concrete evidence that those of their race or sex can become accepted, successful, professionals—plainly, you won't try to become what you don't believe you can become.

But do they need these role models right there in the classroom? Of course it might be argued that they do: that a black learns better from a black teacher, a woman from a woman teacher. But we have already looked at this. And if they are, though needed, not needed in the classroom, then is it the university's job to provide them?

For it must surely be granted that a college, or university, has not the responsibility—or perhaps, if it is supported out of public funds, even the right—to provide just *any* service to its students which it might be good for them, or even which they may need, to be provided with. Sports seem to me plainly a case in point. No doubt it is very good for students to be offered, and perhaps even required to become involved in, a certain amount of physical exercise; but I can see no

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reason whatever to think that universities should be expected to provide facilities for it, or taxpayers to pay for those facilities. I suspect others may disagree, but my own feeling is that it is the same with medical and psychiatric services: I am sure that at least some students need medical and psychiatric help, but I cannot see why it should be provided for them in the universities, at public expense.

So the further question which would have to be answered is this: granting that black and female students need black and female role models, why should the universities be expected to provide them within their faculties? In the case of publicly supported universities, why should taxpayers be expected to provide them?

I don't say these questions can't be answered. But I do think we need to come at them from a quite different direction. So I shall simply sidestep this ground for preferential hiring in the universities. The defense I give will not turn on anyone's supposing that of two otherwise equally well qualified candidates, one may be better qualified for the job by virtue, simply, of being of the right race or sex.

II

I mentioned several times in the preceding section the obvious fact that it is the taxpayers who support public universities. Not that private universities are wholly private: the public contributes to the support of most of them, for example by allowing them tax-free use of land, and of the dividends and capital gains on investments. But it will be the public universities in which the problem appears most starkly: as I shall suggest, it is the fact of public support that makes preferential hiring in the universities problematic.

For it seems to me that—other things being equal—there is no problem about preferential hiring in the case of a wholly private college or university, that is, one which receives no measure of public support at all, and which lives simply on tuition and (non-tax-deductible) contributions.

The principle here seems to me to be this: no perfect stranger has a right to be given a benefit which is yours to dispose of; no perfect stranger even has a right to be given an equal chance at getting a benefit which is yours to dispose of. You not only needn't give the

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benefit to the first perfect stranger who walks in and asks for it; you needn't even give him a chance at it, as, e.g., by tossing a coin.

I should stress that I am here talking about *benefits*, that is, things which people would like to have, which would perhaps not merely please them, but improve their lives, but which they don't actually *need*. (I suspect the same holds true of things people do actually need, but many would disagree, and as it is unnecessary to speak here of needs, I shall not discuss them.) If I have extra apples (they're mine: I grew them, on my own land, from my own trees), or extra money, or extra tickets to a series of lectures I am giving on How to Improve Your Life Through Philosophy, and am prepared to give them away, word of this may get around, and people may present themselves as candidate recipients. I do not have to give to the first, or to proceed by letting them all draw straws; if I really do own the things, I can give to whom I like, on any ground I please, and in so doing, I violate no one's *rights*, I treat no one *unjustly*. None of the candidate recipients has a right to the benefit, or even to a chance at it.

There are four caveats. (1) Some grounds for giving or refraining from giving are less respectable than others. Thus, I might give the apples to the first who asks for them simply because he is the first who asks for them. Or again, I might give the apples to the first who asks for them because he is black, and because I am black and feel an interest in and concern for blacks which I do not feel in and for whites. In either case, not merely do I do what it is within my rights to do, but more, my ground for giving them to that person is a not immoral ground for giving them to him. But I might instead give the apples to the sixth who asks, and this because the first five were black and I hate blacks—or because the first five were white and I hate whites. Here I do what I have a right to do (for the apples are *mine*), and I violate no one's rights in doing it, but my ground for disposing of the apples as I did was a bad one; and it might even, more strongly, be said that I ought not have disposed of the apples in the way I did. But it is important to note that it is perfectly consistent, on the one hand, that a man's ground for acting as he did was a bad one, and even that he ought not have done what he did, and, on the other hand, that he

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had a right to do what he did, that he violated no one's rights in doing it, and that no one can complain he was unjustly treated.

The second caveat (2) is that although I have a right to dispose of my apples as I wish, I have no right to harm, or gratuitously hurt or offend. Thus I am within my rights to refuse to give the apples to the first five because they are black (or because they are white); but I am not within my rights to say to them "I refuse to give you apples because you are black (or white) and because those who are black (or white) are inferior."

And (3) if word of my extra apples, and of my willingness to give them away, got around because I advertised, saying or implying First Come First Served Till Supply Runs Out, then I cannot refuse the first five because they are black, or white. By so advertising I have *given* them a right to a chance at the apples. If they come in one at a time, I must give out apples in order, till the supply runs out; if they come in together, and I have only four apples, then I must either cut up the apples, or give them each an equal chance, as, e.g., by having them draw straws.

And lastly (4), there may be people who would say that I don't really, or don't fully own those apples, even though I grew them on my own land, from my own trees, and therefore that I don't have a right to give them away as I see fit. For after all, I don't own the police who protected my land while those apples were growing, or the sunlight because of which they grew. Or again, wasn't it just a matter of luck for me that I was born with a green thumb?—and why should I profit from a competence that I didn't deserve to have, that I didn't earn? Or perhaps some other reason might be put forward for saying that I don't own those apples. I don't want to take this up here. It seems to me wrong, but I want to let it pass. If anyone thinks that I don't own the apples, or, more generally, that no one really or fully owns anything, he will regard what I shall say in the remainder of this section, in which I talk about what may be done with what is privately owned, as an idle academic exercise. I'll simply ask that anyone who does think this be patient: we will come to what is publicly owned later.

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Now what was in question was a job, not apples; and it may be insisted that to give a man a job is not to give him a benefit, but rather something he needs. Well, I am sure that people do need jobs, that it does not fully satisfy people's needs to supply them only with food, shelter, and medical care. Indeed, I am sure that people need, not merely jobs, but jobs that interest them, and that they can therefore get satisfaction from the doing of. But on the other hand, I am not at all sure that any candidate for a job in a university needs a job in a university. One would very much like it if all graduate students who wish it could find jobs teaching in universities; it is in some measure a tragedy that a person should spend three or four years preparing for a career, and then find there is no job available, and that he has in consequence to take work which is less interesting than he had hoped and prepared for. But one thing seems plain: no one *needs* that work which would interest him most in all the whole world of work. Plenty of people have to make do with work they like less than other work—no economy is rich enough to provide everyone with the work he likes best of all—and I should think that this does not mean they lack something they *need.* We are all of us prepared to tax ourselves so that no one shall be in need; but I should imagine that we are not prepared to tax ourselves (to tax barbers, truck drivers, salesclerks, waitresses, and factory workers) in order that everyone who wants a university job, and is competent to fill it, shall have one made available to him.

All the same, if a university job is a benefit rather than something needed, it is anyway not a "pure" benefit (like an apple), but an "impure" one. To give a man a university job is to give him an opportunity to do work which is interesting and satisfying; but he will only *be* interested and satisfied if he actually does the work he is given an opportunity to do, and does it well.

What this should remind us of is that certain cases of preferential hiring might well be utterly irrational. Suppose we have an eating club, and need a new chef; we have two applicants, a qualified French chef, and a Greek who happens to like to cook, though he doesn't do it very well. We are fools if we say to ourselves "We like the Greeks, and dislike the French, so let's hire the Greek." We simply won't eat as well as we could have, and eating, after all, was the point of the

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club. On the other hand, it's *our* club, and so *our* job. And who shall say it is not within a man's rights to dispose of what really is his in as foolish a way as he likes?

And there is no irrationality, of course, if one imagines that the two applicants are equally qualified French chefs, and one is a cousin of one of our members, the other a perfect stranger. Here if we declare directly for the cousin, we do not act irrationally, we violate no one's rights, and indeed do not have a morally bad ground for making the choice we make. It's not a morally splendid ground, but it isn't a morally bad one either.

Universities differ from eating clubs in one way which is important for present purposes: in an eating club, those who consume what the club serves are the members, and thus the owners of the club themselves—by contrast, if the university is wholly private, those who consume what it serves are not among the owners. This makes a difference: the owners of the university have a responsibility not merely to themselves (as the owners of an eating club do), but also to those who come to buy what it offers. It could, I suppose, make plain in its advertising that it is prepared to allow the owners' racial or religious or other preferences to outweigh academic qualifications in its teachers. But in the absence of that, it must, in light of what a university is normally expected to be and to aim at, provide the best teachers it can afford. It does not merely act irrationally, but indeed violates the rights of its student-customers if it does not.

On the other hand, this leaves it open to the university that in case of a choice between equally qualified candidates, it violates no one's rights if it declares for the black because he is black, or for the white because he is white. To the wholly *private* university, that is, for that is all I have so far been talking of. Other things being equal—that is, given it has not advertised the job in a manner which would entitle applicants to believe that all who are equally qualified will be given an equal chance at it, and given it does not gratuitously give offence to those whom it rejects—the university may choose as it pleases, and violates no one's rights in doing so. Though no doubt its grounds for choosing may be morally bad ones, and we may even wish to say, more strongly, that it ought not choose as it does.

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What will have come out in the preceding is that the issue I am concerned with is a moral, and not a legal one. My understanding is that the law does prevent an employer wholly in the private sector from choosing a white rather than a black on ground of that difference alone—though not from choosing a black rather than a white on ground of that difference alone. Now if, as many people say, legal rights (or perhaps, legal rights in a relatively just society) create moral rights, then even a moral investigation should take the law into account; and indeed, if I am not mistaken as to the law, it would have to be concluded that blacks (but not whites) do have rights of the kind I have been denying. I want to sidestep all this. My question can be re-put: would a private employer's choosing a white (or black) rather than a black (or white) on ground of that difference alone be a violation of anyone's rights if there were no law making it illegal. And the answer seems to me to be: it would not.

III

But hardly any college or university in America is purely private. As I said, most enjoy some public support, and the moral issues may be affected by the extent of the burden carried by the public. I shall concentrate on universities which are entirely publicly funded, such as state or city universities, and ignore the complications which might arise in case of partial private funding.

The special problem which arises here, as I see it, is this: where a community pays the bills, the community owns the university.

I said earlier that the members, who are therefore the owners, of a private eating club may declare for whichever chef they wish, even if the man they declare for is not as well qualified for the job as some other; in choosing amongst applicants, they are *not* choosing amongst fellow members of the club who is to get some benefit from the club. But now suppose, by contrast, that two of us who are members arrive at the same time, and there is only one available table. And suppose also that this has never happened before, and that the club has not voted on any policy for handling it when it does happen. What seems to me to be plain is this: the headwaiter cannot indulge in preferential seating, he cannot simply declare for one or the other of us on just any

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ground he pleases. He must randomize: as it might be, by tossing a coin.

Or again, suppose someone arrives at the dining room with a gift for the club: a large and very splendid apple tart. And suppose that this, too, has never happened before, and that the club has not voted on any policy for handling it when it does happen. What seems to me plain is this: the headwaiter cannot distribute that tart in just any manner, and on any ground he pleases. If the tart won't keep till the next meeting, and it's impossible to convene one now, he must divide the tart amongst us equally.

Consideration of these cases might suggest the following principle: every owner of a jointly owned property has a right to either an equal chance at, or an equal share in, any benefit which that property generates, and which is available for distribution amongst the owners—equal chance rather than equal share if the benefit is indivisible, or for some reason is better left undivided.

Now I have all along been taking it that the members of a club jointly own the club, and therefore jointly own whatever the club owns. It seems to me possible to view a community in the same way: to suppose that its members jointly own it, and therefore jointly own whatever it owns. If a community is properly viewed in this way, and if the principle I set out above is true, then every member of the community is a joint owner of whatever the community owns, and so in particular, a joint owner of its university; and therefore every member of the community has a right to an equal chance at, or equal share in, any benefit which the university generates, which is available for distribution amongst the owners. And that includes university jobs, if, as I argued, a university job is a benefit.

Alternatively, one might view a community as an imaginary Person: one might say that the members of that community are in some sense participants in that Person, but that they do not jointly own what the Person owns. One might in fact say the same of a club: that its members do not jointly own the club or anything which the club owns, but only in some sense participate in the Person which owns the things. And then the cases I mentioned might suggest an analogous principle: every "participant" in a Person (Community-Person, Club-

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Person) has a right to either an equal chance at, or an equal share in, any benefit which is generated by a property which that Person owns, which is available for distribution amongst the "participants."

On the other hand, if we accept any of this, we have to remember that there are cases in which a member may, without the slightest impropriety, be deprived of this equal chance or equal share. For it is plainly not required that the university's hiring officer decide who gets the available job by randomizing amongst *all* the community members, however well- or ill-qualified, who want it. The university's student-customers, after all, have rights too; and their rights to good teaching are surely more stringent than each member's right (if each has such a right) to an equal chance at the job. I think we do best to reserve the term "violation of a right" for cases in which a man is unjustly deprived of something he has a right to, and speak rather of "overriding a right" in cases in which, though a man is deprived of something he has a right to, it is not unjust to deprive him of it. So here the members' rights to an equal chance (if they have them) would be, not violated, but merely overridden.

It could of course be said that these principles hold only of benefits of a kind I pointed to earlier, and called "pure" benefits (such as apples and apple tarts), and that we should find some other, weaker, principle to cover "impure" benefits (such as jobs).

Or it could be said that a university job is not a benefit which is available for distribution amongst the community members—that although a university job is a benefit, it is, in light of the rights of the students, available for distribution only amongst those members of the community who are best qualified to hold it. And therefore that they alone have a right to an equal chance at it.

It is important to notice, however, that unless *some* such principle as I have set out is true of the publicly owned university, there is no real problem about preferential hiring in it. Unless the white male applicant who is turned away had a right that this should not be done, doing so is quite certainly not violating any of his rights. Perhaps being joint owner of the university (on the first model) or being joint participant in the Person which owns the university (on the second

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model), do not give him a right to an equal chance at the job; perhaps he is neither joint owner nor joint participant (some third model is preferable), and it is something else which gives him his right to an equal chance at the job. Or perhaps he hasn't a right to an equal chance at the job, but has instead some other right which is violated by declaring for the equally qualified black or woman straightway. It is here that it seems to me it emerges most clearly that opponents of preferential hiring are merely expressing a gut reaction against it: for they have not asked themselves precisely what right is in question, and what it issues from.

Perhaps there is lurking in the background some sense that everyone has a right to "equal treatment," and that it is this which is violated by preferential hiring. But what on earth right is this? Mary surely does not have to decide between Tom and Dick by toss of a coin, if what is in question is marrying. Nor even, as I said earlier, if what is in question is giving out apples, which she grew on her own land, on her own trees.

It could, of course, be argued that declaring for the black or woman straightway isn't a violation of the white male applicant's rights, but is all the same wrong, bad, something which ought not be done. As I said, it is perfectly consistent that one ought not do something which it is, nevertheless, no violation of anyone's rights to do. So perhaps opponents of preferential hiring might say that rights are not in question, and still argue against it on other grounds. I say they *might*, but I think they plainly do better not to. If the white male applicant has no rights which would be violated, and appointing the black or woman indirectly benefits other blacks or women (remember that need for role models), and thereby still more indirectly benefits us all (by widening the available pool of talent), then it is very hard to see how it could come out to be morally objectionable to declare for the black or woman straightway.

I think we should do the best we can for those who oppose preferential hiring: I think we should grant that the white male applicant has a right to an equal chance at the job, and see what happens for preferential hiring if we do. I shall simply leave open whether this right

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issues from considerations of the kind I drew attention to, and so also whether or not every member of the community, however well- or ill-qualified for the job, has the same right to an equal chance at it.

Now it is, I think, widely believed that we may, without injustice, refuse to grant a man what he has a right to only if *either* someone else has a conflicting and more stringent right, *or* there is some very great benefit to be obtained by doing so—perhaps that a disaster of some kind is thereby averted. If so, then there really is trouble for preferential hiring. For what more stringent right could be thought to override the right of the white male applicant for an equal chance? What great benefit obtained, what disaster averted, by declaring for the black or the woman straightway? I suggested that benefits are obtained, and they are not small ones. But are they large enough to override a right? If these questions cannot be satisfactorily answered, then it looks as if the hiring officer does act unjustly, and does violate the rights of the white males, if he declares for the black or woman straightway.

But in fact there are other ways in which a right may be overridden. Let's go back to that eating club again. Suppose that now it has happened that two of us arrive at the same time when there is only one available table, we think we had better decide on some policy for handling it when it happens. And suppose that we have of late had reason to be especially grateful to one of the members, whom I'll call Smith: Smith has done a series of very great favors for the club. It seems to me we might, out of gratitude to Smith, adopt the following policy: for the next six months, if two members arrive at the same time, and there is only one available table, then Smith gets in first, if he's one of the two; whereas if he's not, then the headwaiter shall toss a coin.

We might even vote that for the next year, if he wants apple tart, he gets more of it than the rest of us.

It seems to me that there would be no impropriety in our taking these actions—by which I mean to include that there would be no injustice in our taking them. Suppose another member, Jones, votes No. Suppose he says "Look. I admit we all benefited from what Smith did for us. But still, I'm a member, and a member in as good standing

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as Smith is. So I have a right to an equal chance (and equal share), and I demand what I have a right to." I think we may rightly feel that Jones merely shows insensitivity: he does not adequately appreciate what Smith did for us. Jones, like all of us, has a right to an equal chance at such benefits as the club has available for distribution to the members; but there is no injustice in a majority's refusing to grant the members this equal chance, in the name of a debt of gratitude to Smith.

It is worth noticing an important difference between a debt of gratitude and debts owed to a creditor. Suppose the club had borrowed $1000 from Dickenson, and then was left as a legacy, a painting appraised at $1000. If the club has no other saleable assets, and if no member is willing to buy the painting, then I take it that justice would precisely require *not* randomizing amongst the members who is to get that painting, but would instead require our offering it to Dickenson. Jones could not complain that to offer it to Dickenson is to treat him, Jones, unjustly: Dickenson has a right to be paid back, and that right is more stringent than any member's right to an equal chance at the painting. Now Smith, by contrast, did not have a right to be given anything, he did not have a right to our adopting a policy of preferential seating in his favor. If we fail to do anything for Dickenson, we do him an injustice; if we fail to do anything for Smith, we do *him* no injustice—our failing is, not injustice, but ingratitude. There is no harm in speaking of debts of gratitude and in saying that they are owed to a benefactor, by analogy with debts owed to a creditor; but it is important to remember that a creditor has, and a benefactor does not have, a right to repayment.

To move now from clubs to more serious matters, suppose two candidates for a civil service job have equally good test scores, but that there is only one job available. We could decide between them by coin-tossing. But in fact we do allow for declaring for A straightway, where A is a veteran, and B is not.[2] It may be that B is a nonveteran through no fault of his own: perhaps he was refused induction for flat feet, or

2. To the best of my knowledge, the analogy between veterans' preference and the preferential hiring of blacks has been mentioned in print only by Edward T. Chase, in a Letter to the Editor, *Commentary*, February 1973.

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a heart murmur. That is, those things in virtue of which B is a non-veteran may be things which it was no more in his power to control or change than it is in anyone's power to control or change the color of his skin. Yet the fact is that B is not a veteran and A is. On the assumption that the veteran has served his country,[3] the country owes him something. And it seems plain that giving him preference is a not unjust way in which part of that debt of gratitude can be paid.

And now, finally, we should turn to those debts which are incurred by one who wrongs another. It is here we find what seems to me the most powerful argument for the conclusion that the preferential hiring of blacks and women is not unjust.

I obviously cannot claim any novelty for this argument: it's a very familiar one. Indeed, not merely is it familiar, but so are a battery of objections to it. It may be granted that if we have wronged A, we owe him something: we should make amends, we should compensate him for the wrong done him. It may even be granted that if we have wronged A, we must make amends, that justice requires it, and that a failure to make amends is not merely callousness, but injustice. But (a) are the young blacks and women who are amongst the current applicants for university jobs amongst the blacks and women who were wronged? To turn to particular cases, it might happen that the black applicant is middle class, son of professionals, and has had the very best in private schooling; or that the woman applicant is plainly the product of feminist upbringing and encouragement. Is it proper, much less required, that the black or woman be given preference over a white male who grew up in poverty, and has to make his own way and earn his encouragements? Again, (b), did we, the current members of the community, wrong any blacks or women? Lots of people once did; but then isn't it for them to do the compensating? That is, if they're still alive. For presumably nobody now alive owned any slaves, and perhaps nobody now alive voted against women's suffrage. And (c) what if the white male applicant for the job has never in

3. Many people would reject this assumption, or perhaps accept it only selectively, for veterans of this or that particular war. I ignore this. What interests me is what follows if we make the assumption—as, of course, many other people do, more, it seems, than do not.

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any degree wronged any blacks or women? If so, *he* doesn't owe any debts to them, so why should *he* make amends to them?

These objections seem to me quite wrong-headed.

Obviously the situation for blacks and women is better than it was a hundred and fifty, fifty, twenty-five years ago. But it is absurd to suppose that the young blacks and women now of an age to apply for jobs have not been wronged. Large-scale, blatant, overt wrongs have presumably disappeared; but it is only within the last twenty-five years (perhaps the last ten years in the case of women) that it has become at all widely agreed in this country that blacks and women must be recognized as having, not merely this or that particular right normally recognized as belonging to white males, but all of the rights and respect which go with full membership in the community. Even young blacks and women have lived through down-grading for being black or female: they have not merely not been given that very equal chance at the benefits generated by what the community owns which is so firmly insisted on for white males, they have not until lately even been felt to have a right to it.

And even those were not themselves down-graded for being black or female have suffered the consequences of the down-grading of other blacks and women: lack of self-confidence, and lack of self-respect. For where a community accepts that a person's being black, or being a woman, are right and proper grounds for denying that person full membership in the community, it can hardly be supposed that any but the most extraordinarily independent black or woman will escape self-doubt. All but the most extraordinarily independent of them have had to work harder—if only against self-doubt—than all but the most deprived white males, in the competition for a place amongst the best qualified.

If any black or woman has been unjustly deprived of what he or she has a right to, then of course justice does call for making amends. But what of the blacks and women who haven't actually been deprived of what they have a right to, but only made to suffer the consequences of injustice to other blacks and women? *Perhaps* justice doesn't require making amends to them as well; but common decency certainly does. To fail, at the very least, to make what counts as

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public apology to all, and to take positive steps to show that it is sincerely meant, is, if not injustice, then anyway a fault at least as serious as ingratitude.

Opting for a policy of preferential hiring may of course mean that some black or woman is preferred to some white male who as a matter of fact has had a harder life than the black or woman. But so may opting for a policy of veterans' preference mean that a healthy, unscarred, middle class veteran is preferred to a poor, struggling, scarred, nonveteran. Indeed, opting for a policy of settling who gets the job by having all equally qualified candidates draw straws may also mean that in a given case the candidate with the hardest life loses out. Opting for any policy other than hard-life preference may have this result.

I have no objection to anyone's arguing that it is precisely hard-life preference that we ought to opt for. If all, or anyway all of the equally qualified, have a right to an equal chance, then the argument would have to draw attention to something sufficiently powerful to override that right. But perhaps this could be done along the lines I followed in the case of blacks and women: perhaps it could be successfully argued that we have wronged those who have had hard lives, and therefore owe it to them to make amends. And then we should have in more extreme form a difficulty already present: how are these preferences to be ranked? shall we place the hard-lifers ahead of blacks? both ahead of women? and what about veterans? I leave these questions aside. My concern has been only to show that the white male applicant's right to an equal chance does not make it unjust to opt for a policy under which blacks and women are given preference. That a white male with a specially hard history may lose out under this policy cannot possibly be any objection to it, in the absence of a showing that hard-life preference is not unjust, and, more important, takes priority over preference for blacks and women.

Lastly, it should be stressed that to opt for such a policy is not to make the young white male applicants themselves make amends for any wrongs done to blacks and women. Under such a policy, no one is asked to give up a job which is already his; the job for which the white male competes isn't his, but is the community's, and it is the

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hiring officer who gives it to the black or woman in the community's name. Of course the white male is asked to give up his equal chance at the job. But that is not something he pays to the black or woman by by way of making amends; it is something the community takes away from him in order that *it* may make amends.

Still, the community does impose a burden on him: it is able to make amends for its wrongs only by taking something away from him, something which, after all, we are supposing he has a right to. And why should *he* pay the cost of the community's amends-making?

If there were some appropriate way in which the community could make amends to its blacks and women, some way which did not require depriving anyone of anything he has a right to, then that would be the best course of action for it to take. Or if there were anyway some way in which the costs could be shared by everyone, and not imposed entirely on the young white male job applicants, then that would be, if not best, then anyway better than opting for a policy of preferential hiring. But in fact the nature of the wrongs done is such as to make jobs the best and most suitable form of compensation. What blacks and women were denied was full membership in the community; and nothing can more appropriately make amends for that wrong than precisely what will make them feel they now finally have it. And that means jobs. Financial compensation (the cost of which could be shared equally) slips through the fingers; having a job, and discovering you do it well, yield—perhaps better than anything else—that very self-respect which blacks and women have had to do without.

But of course choosing this way of making amends means that the costs are imposed on the young white male applicants who are turned away. And so it should be noticed that it is not entirely inappropriate that those applicants should pay the costs. No doubt few, if any, have themselves, individually, done any wrongs to blacks and women. But they have profited from the wrongs the community did. Many may actually have been direct beneficiaries of policies which excluded or down-graded blacks and women—perhaps in school admissions, perhaps in access to financial aid, perhaps elsewhere; and even those who did not directly benefit in this way had, at any rate, the advan-

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tage in the competition which comes of confidence in one's full membership, and of one's rights being recognized as a matter of course.

Of course it isn't only the young white male applicant for a university job who has benefited from the exclusion of blacks and women: the older white male, now comfortably tenured, also benefited, and many defenders of preferential hiring feel that he should be asked to share the costs. Well, presumably we can't demand that he give up his job, or share it. But it seems to me in place to expect the occupants of comfortable professorial chairs to contribute in some way, to make some form of return to the young white male who bears the cost, and is turned away. It will have been plain that I find the outcry now heard against preferential hiring in the universities objectionable; it would also be objectionable that those of us who are now securely situated should placidly defend it, with no more than a sigh of regret for the young white male who pays for it.

IV

One final word: "discrimination." I am inclined to think we so use it that if anyone is convicted of discriminating against blacks, women, white males, or what have you, then he is thereby convicted of acting unjustly. If so, and if I am right in thinking that preferential hiring in the restricted range of cases we have been looking at is *not* unjust, then we have two options: (a) we can simply reply that to opt for a policy of preferential hiring in those cases is not to opt for a policy of discriminating against white males, or (b) we can hope to get usage changed—e.g., by trying to get people to allow that there is discriminating against and discriminating against, and that some is unjust, but some is not.

Best of all, however, would be for that phrase to be avoided altogether. It's at best a blunt tool: there are all sorts of nice moral discriminations [*sic*] which one is unable to make while occupied with it. And that bluntness itself fits it to do harm: blacks and women are hardly likely to see through to what precisely is owed them while they are being accused of welcoming what is unjust.

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